

[Balochistan High Court]

Judges: Hon'ble Justice Abdullah Baloch



muhammad Aslam S/O Gul Zaman

versus

The State

CYBER HARASSMENT AND BLACKMAIL

Criminal Revision Petition No. 81 of 2021

(a) Prevention of Electronic Crimes Act, 2016---S.Section 21 (2), S.Section 24(2), S.Section 45, S.Section 16(1), S.Section 20(1), S.Section 21(1) (B); Pakistan Penal Code---S.Section 34, S.Section 109, S.Section 506; Criminal Procedure Code---S.Section 382-b, S.Section 342, S.Section 340(2)---Cyber Harassment and Blackmail---

The Court upheld the conviction, holding that the prosecution successfully established the charge through direct, circumstantial, and solid documentary evidence, which could not be brushed aside by the petitioner's mere bald denial.

In cases of cyber harassment and blackmail involving moral turpitude, the sole statement of the complainant is sufficient to prove the charge when fully corroborated by electronic documentary evidence (such as verified social media IDs and recovered SIM cards). Furthermore, it is highly improbable that a complainant would fabricate their own nude and objectionable material merely to falsely implicate an accused.

Mr. Sher Ali Kakar, Advocate for Appellant.

M/S Sanaullah Ababaki, Additional Attorney General, Mr. Jameel Bostan, Assistant Attorney General, Mr. Muhammad Khalid Kakar, Advocate for Respondent.

For the above reasons, the petition being devoid of merits is dismissed.

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JUDGMENT SHEET

IN THE HIGH COURT OF BALOCHISTAN QUETTA

Criminal Revision Petition No.81 of 2021

(CC#100107403173)

Muhammad Aslam vs. the State

J U D G M E N T

Date of hearing: 25.08.2021 Announced on .08.2021 Petitioner(s) by: Mr. Sher Ali Kakar, Advocate

State by: M/S Sanaullah Ababaki, Additional Attorney General and Mr. Jameel Bostan, Assistant Attorney General

Complainant by: Mr. Muhammad Khalid Kakar, Advocate

Abdullah Baloch, J:- This judgment disposes of Criminal Revision Petition No.81 of 2021, filed by the petitioner Muhammad Aslam son of Gul Zaman, against the judgement dated 7th August 2021 passed by learned Sessions Judge, Quetta, whereby the appeal filed by the petitioner was dismissed, maintaining the judgment dated 29th April 2021 passed by learned Judicial Magistrate-VII/Magistrate FIA/Cyber Crimes Quetta, ("**the trial Court**"), whereby the petitioner was convicted under Section 21 (2) of Prevention of Electronic Crimes Act, 2016 ("**PECA-2016**") and sentenced to suffer S.I. for seventeen (17) months with fine of Rs.25,000/-; he was also convicted under Section 24(2) of PECA-2016 and sentenced to suffer seventeen (17) months S.I. with fine of Rs.20,000/-. The amounts of fine after recovery was ordered to be paid to the victim as compensation as envisaged under Section 45 of PECA-2016. Both the sentences were ordered to run concurrently with the benefit of Section 382-b Cr.P.C. However, co-accused Jan Zaman son of Zarif Khan was acquitted of the charge.

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2. Facts of the case are that consequent upon finalization of Inquiry No.166/2019 dated 6.9.2019, registered at FIA NR3C Quetta on the basis of written complainant submitted by the complainant Abdul Bari son of Muhammad Ghafoor, the FIR No.06 of 2019 was lodged at FIA Circle on 1st August 2019, under Section 16(1), 20(1), 21(1) (B) of Prevention of Electronic Crimes Act (PECA), 2016 r/w Section 34, 109, 506 PPC, with the averments that the petitioner (convict) Muhammad Aslam alongwith co accused Jehanzaib called him through one Shahzaib with the request to pass a drip to his mother at home. He reached there at 10.00 p.m. where the petitioner alongwith Jehanzaib overpowered him, took off his clothes, beaten him severely and took nude photographs/images and

made objectionable video of complainant. Subsequently, on 30th June 2019 and 3rd August 2019, the petitioner sent threatening messages, nude photographs of the complainant through Facebook ID i.e. "Zaiba Harnai Zaiba Harnai and Malik Zada Aslam Tareen" in the Messenger of complainant with intention to harass and blackmail him and demanded Rs.50 Lac and motorcycle from him. On 2nd September 2019, the obscene photographs and videos of the complainant were shared by the accused Jan Zaman through his Facebook I.D. on the name of "Jan Zaman".

3. Pursuant to the above FIR, the petitioner (convict) and co accused Jan Zaman, were arrested, investigated and challaned before the trial Court, which indicated the charge and after denial, the prosecution produced five (05) witnesses, whereafter the petitioner (convict) and co accused were examined under Section 342 Cr.P.C. They neither recorded their statements on oath under Section 340(2) Cr.P.C. nor produced any witness in their defence. On conclusion of trial and after hearing arguments, the learned trial Court, convicted and sentenced the petitioner as mentioned

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above, vide impugned judgement dated 29th April 2021, while co-accused Jan Zaman was acquitted of the charge. Whereafter, the petitioner (convict) filed an appeal for his acquittal, while the complainant filed criminal revision petition for enhancement of sentences awarded to the petitioner (convict), but after hearing arguments the learned appellate Court dismissed both the appeal and revision petition, vide common judgement dated 7th August 2021. Whereafter, the petitioner (convict) filed the instant petition.

4. Heard the learned counsel for parties and perused the available record minutely. The minute scrutiny of both the impugned judgments delivered by the Courts below transpires that they same are well reasoned and does not suffer from any illegality or material irregularity rather both the Courts below have rightly dilated upon each and every single iota of evidence. Admittedly, the case in hand was registered after conducting a detail inquiry by the FIA by collecting all the incriminatory evidence from the possession of culprits and also approached the Facebook Authorities and brought evidence from abroad. The complainant/PW-1 Abdul Bari mostly reiterated the contents of his application/complaint Ex.P/1-A with details that he was called by the culprits to a pass a drip to his mother, but in the meantime he was overpowered by the petitioner (convict) and co-accused Jan Zaman, who gave him severe beatings, took off his cloths and captured bottomless nude pictures and also filmed his nude video. PW-1 further brought on record that thereafter time and again the culprits blackmailed him by demanding five million rupees and a motorcycle and on failure to fulfill their demands, they sent the said nude pictures and videos to him through Messenger and ultimately uploaded the same by the petitioner (convict) Muhammad Aslam through his Facebook I.D. "Malik Zada Aslam Tareen" and "Zaiba Harnai Zaiba Harnai".

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5. The prosecution in order to establish whether the I.D. is registered in the name of petitioner or otherwise, approached the Facebook authorities abroad, from where it was confirmed that the said account “Malik Zada Aslam Tareen” was registered against the SIM No.+923324499000 and the said Sim is registered in the name of petitioner. Likewise, the second Facebook I.D. “Zaiba Harnai Zaiba Harnai” was found to be registered against the email address of the petitioner (convict i.e. aslamtareen123456789@gmail.com and verified through Sim No.+923158293047 and the said Sim was registered in the name of PW-2 Muhammad Tahir. The prosecution produced PW-2 Muhammad Tahir, who brought on record that the petitioner (convict) Muhammad Aslam was the friend of his son Muhammad Siddique and upon the request of petitioner, he got activated the Sim for petitioner, but however, he was unaware that the same was misused by the petitioner (convict).

6. The case of prosecution has further got strength from the recovery of Sims and mobile phone from the possession of petitioner (convict). PW-3 Shoaib Amin, ASI, being the recovery witness confirmed the recovery of Zong Sim No.0315-8293047 (registered in the name of PW 2) and Uphone Sim No.0332-4499000 from the possession of petitioner alongwith a mobile phone, which was used for verification of Facebook ID Malik Zada Aslam Tareen. Through the said Facebook I.D. “Malik Zada Aslam Tareen” shared the nude contents of complainant, while the Facebook I.D. “Zaiba Harnai Zaiba Harnai” was found logged-in in the mobile phone recovered from the possession of petitioner (convict). The prosecution also produced the extracted stripped images and objectionable pictures of the complainant and also produced electronic generated documents and screen shots reveals that same are the bottomless screen

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shots of the images of the complainant/PW-1. The face of complainant is crystal clear in the screen shots, which were shared by the petitioner Muhammad Aslam. Such pictures and videos were made by the petitioner (convict) with sole purpose to blackmail and harass the complainant/PW-1 and to extract some monetary benefits from him.

7. The prosecution has succeeded to establish the charge through direct, circumstantial and documentary evidence, which were not rebutted by the defence. The petitioner (convict) has also failed to bring on record any single iota of evidence establishing his false implication. Furthermore, the delay in reporting the matter to FIA, was very natural because the reputation of the complainant was at stake but since the petitioner (convict) continued threatening the complainant who was left with no other option but to lodge the F.I.R. Furthermore, both the parties are the inhabitants of the same area and nothing has come on record that in the past there had remained any dispute in between the parties, thus the learned trial Court while relying upon the statements of PWs and the other incriminatory

evidence has rightly convicted the petitioner (convict). After careful scrutiny and analyzing the data available on record I am of the firm view that the sole statement of the complainant is sufficient to prove the charge against the (petitioner) and there is no reason to doubt the credibility of this witness. The petitioner committed the offence for blackmailing of complainant intentionally and publicly exhibiting, displaying and transmitting the nude photographs and videos for the purpose of some illegitimate demands. The offence is of moral turpitude which badly affects the society at large. Even otherwise, the complainant/PW-1 Abdul Bari is a Youngman, residing in the said area, thus in the case in hand not only the prestige and honour of himself, but also the reputation of his entire family

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is involved, thus it does not appeal to the logic in any sense that he in order to falsely implicate the petitioner (convict) himself got captured his nude pictures and filmed his objectionable video.

8. Throughout the case, the petitioner has failed to take any specific plea with regard to his false implication. In his examination under section 342, Cr.P.C., he simply denied the allegations and even did not record his statement on oath and also not produced any witness in his defence establishing his false implication, whereas on the other hand the prosecution has produced direct, circumstantial and solid documentary evidence, which cannot be brushed aside merely on the basis of bald denial of the petitioner. Both the Courts below have rightly appreciated the evidence in its true perspective and the learned counsel for petitioner has failed to point out any material illegality or irregularity in the concurrent findings of both the Courts below.

For the above reasons, the petition being devoid of merits is dismissed.

Announced in open Court JUDGE Quetta, the ____ August 2021

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